10.11 Biosafety Guidelines

Due to the growing concerns arising from Genetically Modified Organisms (GMOs) throughout the globe the WHO has built an informal working group on biosafety in 1991. This group prepared the 'voluntary code for the release of organisms into the environment'. ICGEB (International Centre for Genetic Engineering and Biotechnology) has played a significant role in issues related to biosafety and the environmentally sustainable use of biotechnology. The main 'topic of concern' related to the release of GMO's are risks for human health, environment, and agriculture which is found on the website of ICGEB.

In India, DBT has evolved 'rDNA safety guidelines' to exercise powers conferred through the Environmental Protection Act 1986 for the manufacture, use, import, export and storage of hazardous micro organisms and genetically engineered organisms, cells etc., These guidelines are implemented and monitored by the Institutional Biosafety Committees (IBSCs), the Review Committee on Genetic Manipulation (RCGM) and the Genetic Engineering Approval Committee (GEAC) of the Ministry of Environment and Forest.

Intellectual Property Rights (IPR) and Protection (IPP)

The physical objects like household goods or land or properties of a person and the ownership and rights on these properties is protected by certain laws operating in the country. This type of physical property is tangible; but the transformed microorganisms, plants, animals and technologies for the production of commercial products are exclusively the property of the intellectuals. The discoverer or inventor has complete rights on his property or invention. The rights of intellectuals are protected by laws framed by a country. The intellectual property is an intangible asset. Legal rights or patents provide an inventor only a temporary monopoly on the use of an invention, in return for disclosing the knowledge to the others who may use the knowledge to develop further inventions and innovations.

The laws are formulated from time to time at national and international levels. Development of new crop varieties is also an intellectual property right. It is protected by 'plant breeders rights' (PBRs). PBRs recognize the fact that farmers and rural communities have contributed to the creation, conservation, exchange and knowledge of genetic and species utilization of genetic diversity. IPR and IPP are granted by the Government to plant breeders for producing a specific plant variety that is new and never existed before.

IPR is protected by different ways like patents, copyrights and trade marks.

Patents

The science of biotechnology involves the production of enormous number of commercial products of economic importance. The inventions include biotechnology products and processes. The products include living entities like micro organisms, animals, plants, cell lines, cell organelles, plasmids and genes and naturally occurring products like primary and secondary metabolites produced by living systems e.g. alcohol, antibiotics.

> Thomas Alva Edison was the only scientist in the world with more than 1000 patents to his credit.

The biotechnological processes involve isolation, purification, cultivation, bioconversion of novel, innovative, simple and cost effective processes, and creation of biotechnological products.

A patent is a Government issued document that allows the person for an exclusive right to manufacture, use or sell an invention for a defined period (usually 20 years). It is a legal document safeguarding the rights and privileges of an inventor / invention. The purpose of

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